

Approved as to
form only:
Stefanie Boster
Date: 12/4/24

**WYOMING RURAL PUBLIC TRANSIT PROGRAM FISCAL YEAR (FY) 2025
SUBRECIPIENT AGREEMENT BETWEEN
THE WYOMING DEPARTMENT OF TRANSPORTATION,
LOCAL GOVERNMENT COORDINATION OFFICE
AND THE
CITY OF CHEYENNE – THE EQUALITY STATE**

State Transit Funding Award Information		
Subrecipient Name: City of Cheyenne – The Equality State		Subrecipient Unique Entity Identifier (UEI): KURKMKZUFMY2
Period of Performance Start and End Date: October 1, 2024, through December 31, 2025		Budget Period Start and End Date: October 1, 2024, through September 30, 2025
State Award this Agreement: \$300,000.00		Total Project Award Including Local Share: \$300,000.00
Award Name: Wyoming Rural Public Transit		Awarding Agency: WYDOT
Subrecipient Contact: Renae Jording Phone: 307-637-6384 Email: rjording@cheyennecity.org		WYDOT Program Mgr.: Sara Janes Telephone: 307-777-4438 Email: sara.janes@wyo.gov
Subrecipient County: Laramie		WYDOT Contact for Confirmation of Funds: Telephone: 307-777-4434 Email: dotrevenue@wyo.gov
Agreement No.: RPT-25-141		Project No.: FT25141

- Parties.** The parties to this Subrecipient Agreement (Agreement) are the Wyoming Department of Transportation, Local Government Coordination Office (WYDOT), whose address is: 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, and the City of Cheyenne – The Equality State (Subrecipient), whose address is: 322 West Lincolnway, Cheyenne, Wyoming 82001.
- Purpose.** This is an award of State financial assistance from WYDOT to the Subrecipient. The purpose of this Agreement is to set forth the respective relationships and responsibilities of the Subrecipient and WYDOT in the administration of the Wyoming Rural Public Transit Program. The Subrecipient shall use State funds for Rural Public Transit Program operations, administration, and/or maintenance to provide public transportation (Project) in Laramie County. All work covered by this Agreement shall comply with the standards of the Americans with Disabilities Act of 1990 (ADA).

Pursuant to Wyo. Stat. §§ 24-15-101 and 24-15-102, WYDOT is authorized to distribute these program funds in accordance with the WYDOT State Management Plan and the Master Agreement, following Federal Transit Administration (FTA) guidelines. This Agreement is also subject to all the Certifications and Assurances required by the FTA.

Wyoming Rural Public Transit Program FY 2025 Subrecipient Agreement No. RPT-25-141
between the Wyoming Department of Transportation, Local Government Coordination Office and the City of
Cheyenne – The Equality State

WYDOT and the Subrecipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.

3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from Effective Date through December 31, 2025. The Subrecipient's timeframe to complete the work under this Agreement (Budget Period) is from October 1, 2024, through September 30, 2025. The Period of Performance is from October 1, 2024, through December 31, 2025.

4. **Payment.**

- A. WYDOT agrees to reimburse the Subrecipient for the Project described in Section 2 above. The total reimbursement shall not exceed three hundred thousand dollars (\$300,000.00). Total Project costs exceeding the Project estimate of three hundred thousand dollars (\$300,000.00) (including local share) shall be borne by the Subrecipient.

The Subrecipient's eligible costs incurred shall be reimbursed upon receipt of an approved WYDOT reimbursement request form, which is provided in WYDOT's project management system. WYDOT requires support documentation for any and all submittals. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and their appropriate reimbursement ratio. Requests for reimbursement shall be submitted monthly. Reimbursement requests submitted more than three (3) months after the expenses were incurred may not be processed for payment. The final invoice for reimbursement will be accepted by WYDOT no later than forty-five (45) days from the end of the Budget Period. WYDOT will make payment to the Subrecipient within forty-five (45) days of receipt of a complete and approved reimbursement request. The basis for reimbursement shall be as follows:

- (i) Net Operating Deficit (Total Operating Expense – Farebox = Net Operating Deficit) is reimbursed with State funds at one hundred percent (100%), with Local Share at zero percent (0%) at the amounts shown below.

Net Operating Deficit	\$300,000.00
State Award (100%)	\$300,000.00
Local Share (0%)	\$00.00

The Subrecipient shall initiate and prosecute to completion all actions necessary to enable the Subrecipient to provide its share of the Project costs at or prior to the time that such funds are needed to meet Project costs. The Subrecipient shall provide WYDOT monthly reporting of ridership and expenses, and semi-annual inventory updates. The Subrecipient shall submit invoices in sufficient detail to ensure that reimbursements may be made in conformance with this Agreement.

Reimbursement shall be made within forty-five (45) days after submission of invoice pursuant to Wyo. Stat. § 16-6-602.

- B.** Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, reimbursement under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of WYDOT.
- C.** Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by the Subrecipient or on its behalf in connection with the Subrecipient's performance and compliance with all of the Subrecipient's obligations under this Agreement.

5. Responsibilities of the Parties.

- A. Project Scope.** The Subrecipient shall undertake and complete the Project in accordance with this Agreement and as described in its application, which is incorporated into this Agreement by this reference.
 - (i)** The Subrecipient shall utilize this grant for the operations, administration, and/or maintenance costs associated with providing public transportation in their service area.
 - (ii)** The Subrecipient shall abide by the terms as described in Section 4 above and in Attachment A, FY 2025 Wyoming Rural Public Transit Annual Program Update, which is attached to and incorporated into this Agreement by this reference.
 - (iii)** WYDOT agrees to reimburse the Subrecipient in accordance with Section 4 above.
- B. Purchase of Project Equipment.** The purchase of all Project equipment financed in whole or in part pursuant to this Agreement shall be undertaken by WYDOT on behalf of the Subrecipient or by the Subrecipient with prior written WYDOT approval in accordance with the procedures established by WYDOT. Purchases of more than four thousand, nine hundred ninety-nine dollars (\$4,999.00) using Federal or State funds are subject to WYDOT approval in accordance with established procedures.
 - (i) Title to Project Equipment.** Title to Project Equipment shall be in the name of the Subrecipient subject to the restrictions on use and disposition of the Project Equipment set forth herein. The following notification shall be typed on the face of the title document of each vehicle by the County Clerk: "WYDOT Grant – Restricted." It is the responsibility of the Subrecipient to ensure the County Clerk is notified of this requirement.

(ii) **Use of Project Equipment.** The Subrecipient agrees that the Project equipment, and/or facilities, shall be used for the purpose for which it was acquired, as long as it is needed in the Project. If the Project equipment is no longer needed, or cannot be used for the intended purpose, prior to selling or otherwise disposing of the Project equipment, the Subrecipient shall immediately notify WYDOT. Before selling or otherwise disposing of the Project equipment, the Subrecipient must receive a written notification from WYDOT allowing the sale or disposal. The Subrecipient shall not execute any lease, pledge, mortgage, lien, or other contract touching or affecting the State interest in any Project equipment, nor shall it obligate itself in any other manner, with any third party with respect to the Project equipment, unless such lease, pledge, mortgage, lien, contract, or other obligation is either in conformance with the standards of FTA guidelines or is otherwise expressly authorized in writing by WYDOT, nor shall the Subrecipient or any other organization that obtains facilities or equipment through this Agreement, by any act or omission of any kind, impair its continuing control over the use of Project equipment. The Subrecipient shall maintain satisfactory records with regard to the use of the property and submit to WYDOT upon request such information, as is required in order to assure compliance with this section. The Subrecipient shall immediately notify WYDOT in all cases where Project equipment is used in a manner substantially different from that described in the Project description. The Subrecipient shall maintain an amount and form satisfactory to WYDOT such insurance or self-insurance as will be adequate to protect Project equipment throughout the period of required use. During the Period of Performance, the Subrecipient shall maintain the Project equipment at a high level of cleanliness, safety, and mechanical soundness. The Subrecipient shall maintain equipment in accordance with its WYDOT-approved Maintenance Plan adopted by its Board or Governing Body and on file with WYDOT. WYDOT and the FTA shall have the right to monitor maintenance records in order to confirm that proper upkeep has been conducted pursuant to this section.

C. **Prohibited Interest.** No member, officer, or employee of the Subrecipient during his or her tenure or one (1) year thereafter shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.

D. **Certifications and Assurances.** The Subrecipient acknowledges that they have read and agree to comply with all requirements in the current FTA Master Agreement and the current FTA Certifications and Assurances. The Subrecipient shall certify that they have read and agree to these requirements annually.

E. **Restrictions, Prohibitions, Controls, and Labor Provisions.**

(i) Equal Employment Opportunity. In connection with carrying out the Project, the Subrecipient shall not discriminate against any employee or

applicant for employment because of race, color, age, creed, sex, national origin, or disability. The Subrecipient shall take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, creed, sex, age, national origin, or disability. Such action shall include, but not be limited to, the following: employment, upgrading, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship.

(ii) Disadvantaged Business Enterprise (DBE) Requirements.

(a) Policy. It is the policy of WYDOT that DBEs, defined as Minority Business Enterprises and Women's Business Enterprises, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with funds under this Agreement. Consequently, the DBE requirements of 49 CFR Part 26 applies to this Agreement.

(b) DBE Obligation. The Subrecipient or its contractor agrees to ensure that DBEs as defined in 49 CFR Part 26 have the maximum opportunity to participate in the performance of contracts and subcontracts financed in whole or in part with funds provided under this Agreement. In this regard, all Subrecipients shall take all necessary and reasonable steps in accordance with 49 CFR Part 26 to ensure that DBEs have the maximum opportunity to compete for and perform contracts. The Subrecipient and its contractor shall not discriminate on the basis of race, color, national origin, or sex in the award and performance of WYDOT assisted contracts.

(iii) Title VI Civil Rights Act of 1964. The Subrecipient shall comply and shall assure the compliance by contractors and subcontractors under this Project with all the requirements imposed by Title VI of the Civil Rights Act of 1964 (49 U.S.C. 2000d), the Regulations of the Department of Transportation (DOT) issued thereunder, 49 CFR Part 21, and the Assurance by the Subrecipient pursuant thereto.

(iv) Compliance with Elderly and Disabled Regulations. The Subrecipient shall comply with applicable regulations regarding transportation for elderly and disabled persons, set forth in 49 CFR Part 27 and the Americans with Disabilities Act of 1990.

(v) Domestic Preferences for Procurement. This provision requires a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States (including but not limited to iron, aluminum, steel, cement, and other manufactured products) in accordance with 2 CFR 200.322.

- (vi) Prohibition of Certain Telecommunications and Video Surveillance Services or Equipment. Federal law prohibits procuring, obtaining, extending, renewing, or entering into contracts for equipment or services from manufacturers listed in 2 CFR 200.216.
- (vii) Never Contract with the Enemy. Awarding agencies and Subrecipients are subject to the regulations implementing Never Contract with the Enemy in 2 CFR part 183. The regulations in 2 CFR part 183 affect covered contracts, grants, and cooperative agreements that are expected to exceed fifty thousand dollars (\$50,000.00) within the period of performance, are performed outside the United States and its territories, and are in support of a contingency operation in which members of the Armed Forces are actively engaged in hostilities in accordance to 2 CFR 200.215.
- (viii) Labor Standards under 49 U.S.C. § 5333. The Subrecipient agrees that 49 U.S.C. § 5333 – Labor Standards applies to this Agreement. The Certifications and Warranties are available from the FTA and WYDOT upon request and are incorporated into this Agreement by this reference. Below is a brief summary of the requirements as well as program applicability.
 - (a) Prevailing Wage Requirements. Construction work financed in whole or part by the FTA shall comply with the provisions of the Davis-Bacon Act.
 - (b) Employee Protective Arrangements. As a condition of 49 U.S.C. §§ 5307-5312, 5337, and/or 5339, employers are required to provide workers with basic protections as required by the Department of Labor. This includes the Special Warranty; details can be found on the Department of Labor's website at <http://www.dol.gov/olms/regs/compliance/compltransit.htm> or may be obtained by contacting the Department of Labor at 202-693-0126.

An employer who receives transit funds must protect all covered transit employees affected by the use of the money. The Department of Labor must approve the arrangements made to protect these employees. For covered employees the arrangements include:

- (1) preserving their rights and benefits;
- (2) continuing their collective bargaining rights;
- (3) protecting them against a worsening of their employment conditions;

- (4) assuring jobs for employees of acquired mass transit systems;
- (5) providing priority of reemployment if the employee is laid off or their job is eliminated; and
- (6) providing paid training.

F. Motor Vehicle Safety.

- (i) Motor Vehicle Safety Standards. The motor vehicles will comply with the Motor Vehicle Safety Standards and Pollution requirements as established by the United States Department of Transportation.
- (ii) Motor Vehicle Requirements. When new motor vehicles are purchased, a written certification shall be obtained from each vendor stating: "The horsepower of the vehicle is adequate for the speed, range, and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment."

G. Nondiscrimination on the Basis of Disability - 504 Regulations.

- (i) The Subrecipient shall ensure to WYDOT that persons with disabilities and groups representing them have had adequate notice of and opportunity to comment on the present and proposed plans for providing transportation to disabled persons unable to use general public service.
- (ii) The Subrecipient must certify to WYDOT that special efforts are being made to provide transportation to eligible disabled persons. This service must be reasonable in cost, meet a significant fraction of such transportation needs, and be provided within a reasonable time.
- (iii) The Subrecipient shall submit a status report to WYDOT (updated every three (3) years). The report must include:
 - (a) A description of the service to the disabled, as compared to the general public service;
 - (b) Copies or a summary of the comments received in response to the opportunity to comment;
 - (c) A statement of any plans to significantly modify the services; and
 - (d) A statement of the resources devoted to the disabled service.

H. Safety Jurisdiction. The FTA requires that all Subrecipients operate their service in a safe manner and not allow any conditions to develop that create a serious hazard of death or injury.

- (i) Required Safety Training Classes. Safety Training Classes are a mandated requirement of the Safety Jurisdiction clause. Transportation Safety Institute (TSI) or equal approved training, ADA compliance training, and other technical training programs are required on a regular basis (as specified by the State Management Plan). The Wyoming Public Transit Association (WYTRANS) shall maintain records and files of training information. The Subrecipient shall maintain independent employee training records for its file as well. The Subrecipient shall notify WYTRANS of any employee-needed training to keep current with the requirements of this section. If safety violations are found and a Subrecipient fails to correct them or comply with the training mandate, further financial assistance may be withheld.

I. Emergency Management. The Subrecipient is required by WYDOT to cooperate and coordinate with Emergency Management agencies in its area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. The Subrecipient shall use its communication equipment to ensure timely evacuation of elderly and disabled people in its area.

J. Records and Reports.

- (i) Establishment and Maintenance of Accounting Records. The Subrecipient shall establish and maintain, in accordance with requirements established by WYDOT, separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.
- (ii) Documentation of Project Costs. All charges to the Project Account shall be supported by properly executed invoices, contracts, or vouchers evidencing in proper detail the nature and propriety of the charges, in accordance with WYDOT rules and regulations. Copies and/or supporting documentation of such invoices, contracts or vouchers must be included with monthly billing statements to cover all charges submitted for payment. The original documentation should be maintained by the Subrecipient in the Project file and must be available to WYDOT upon request.
- (iii) Checks, Orders, and Vouchers. Any check or order drawn by the Subrecipient with respect to any item which is or will be chargeable against the Project Account will be drawn only in accordance with a properly signed voucher then on file in the office of the Subrecipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders, or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible, and, to the extent feasible, kept separate and apart from all other such documents.

(iv) **Reports.** The Subrecipient shall advise WYDOT regarding the progress of the Project at such times and in such manner as WYDOT may require, including, but not limited to, meetings and interim reports. The Subrecipient shall submit, accompanying the monthly reimbursement report, ridership data reports on approved WYDOT forms. WYDOT will not process requests for reimbursement without completed ridership data for the period of the reimbursement request. The Subrecipient shall submit to WYDOT, or its authorized representatives, an inventory of all vehicles, facilities, and equipment purchased by the Subrecipient as part of the Project; all transportation services rendered by the Subrecipient by the use of such vehicles, facilities, and equipment; and all relevant Project data and records. The Subrecipient shall also permit the above-named persons to examine the Subrecipient's books, records, and accounts pertaining to the Project. If the Subrecipient has an audit performed for its own purposes, the Subrecipient agrees to provide WYDOT with a copy of such audit report. The Subrecipient shall keep records and audit reports on file for three (3) years after the close of its fiscal year.

K. **Required Clauses.** The Subrecipient shall include in all subcontracts entered into pursuant to this Agreement all of the above-required clauses and additional Federal clauses required by the FTA Master Agreement. In addition, the following required provision shall be included in any advertisement of invitation to bid for any procurement under this Agreement: "Statement of Financial Assistance. This Agreement is subject to a financial assistance contract between WYDOT and the Federal Transit Administration."

6. **Special Provisions.**

A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of State or Federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with State or Federal requirements. WYDOT shall notify the Subrecipient of any State or Federal determination of noncompliance.

B. **Conflict of Interest.** Per 2 CFR 200.112, the Subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.

C. **Environmental Policy Acts.** Subrecipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.

D. **Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- E. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- F. **Limitations on Lobbying Activities.** By signing this Agreement, Subrecipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Subrecipient or its subcontractors in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.
- G. **Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- H. **Nondiscrimination.** The Subrecipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- I. **No Finder's Fees.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- J. **Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by

or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.

- K. Suspension and Debarment.** By signing this Agreement, Subrecipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Subrecipient agrees to notify WYDOT by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement.
- L. Administration of Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
- M. Copyright License and Patent Rights.** The Subrecipient acknowledges that Federal grantor, the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for Federal and State government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which the Subrecipient purchases ownership using funds awarded under this Agreement. The Subrecipient must consult with WYDOT regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
- N. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount in excess of the amount set forth in 2 CFR Part 200, Subpart F in federal awards during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.
- O. Non-Supplanting Certification.** Subrecipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Subrecipient should be

able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.

- P. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.
- Q. Applicability of Appendix II to 2 CFR Part 200.** This Agreement has been funded, in whole or in part, with an Award of Federal funds and is bound by the federal contract provisions required by the Uniform Guidance Appendix II of 2 CFR Part 200 (the Federal Contract Provisions), incorporated herein by this reference. In the event of a conflict between the Special Provisions section of this Agreement, or any attachments or exhibits incorporated herein, and the Federal Contract Provisions, the Federal Contract Provisions shall control. Failure to comply with the Federal Contract Provisions shall constitute an event of default under this Agreement. If such a default remains uncured five (5) calendar days following the termination of a thirty (30) day prior written notice period, WYDOT may terminate this Agreement. This remedy will be in addition to any other remedy available to the State of Wyoming and WYDOT under this Agreement, at law, or in equity.

7. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from WYDOT, provide to any independent auditor

accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by WYDOT.

- E. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Agreements.** WYDOT may award supplemental or successor contracts for work related to this Agreement or may award contracts to other subrecipients for work related to this Agreement. The Subrecipient shall cooperate fully with other subrecipients and WYDOT in all such cases.
- G. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable Federal, State, and local laws and regulations, and all Federal grant requirements and executive orders in the performance of this Agreement.
- H. Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by WYDOT for its release. If and when the Subrecipient receives a request for information subject to this Agreement, the Subrecipient shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.
- I. Entirety of Agreement.** This Agreement, consisting of seventeen (17) pages; Attachment A, FY 2025 Wyoming Rural Public Transit Annual Program Update, consisting of six (6) pages; and the Federal Contract Provisions, represent the entire and integrated Agreement between the parties and shall supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.

- J. Ethics.** The Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing the Subrecipient's profession.
- K. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- L. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- M. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- N. Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all Federal, State, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.

- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, the Subrecipient agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. Patent or Copyright Protection.** The Subrecipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Subrecipient or its contractors will violate any such restriction. The Subrecipient shall defend and indemnify WYDOT for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- R. Prior Approval.** This Agreement shall not be binding upon either party and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- S. Insurance Requirements.** The Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.
- T. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the Subrecipient expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereigns or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of

sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.

- V. **Taxes.** The Subrecipient shall pay all taxes and other such amounts required by Federal, State, and local law, including, but not limited to, Federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. **Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days written notice. This Agreement may be terminated by WYDOT immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Agreement.

If at any time during the performance of this Agreement, in the opinion of WYDOT, the work is not progressing satisfactorily or within the terms of this Agreement, then, at the discretion of WYDOT and after written notice to the Subrecipient, WYDOT may terminate this Agreement or any part of it. As of the termination date, the Subrecipient will be entitled to a pro rata payment for all work accomplished and accepted by WYDOT; however, the Subrecipient shall be liable to WYDOT for the entire cost of replacement services for the duration of the Agreement term.

- X. **Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. **Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. **Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- AA. **Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. **Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

WYDOT:

Wyoming Department of Transportation, Local Government Coordination Office

Keith R. Fulton, P.E., Assistant Chief Engineer,
Engineering and Planning

Date:

ATTEST:

Caitlin Casner, Secretary
Transportation Commission of Wyoming

Date:

SUBRECIPIENT:

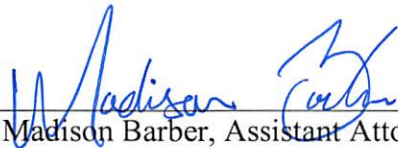
City of Cheyenne – The Equality State

Signature

Date:

Print Name & Title

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #244637

Madison Barber, Assistant Attorney General

11.15.24

Date: